



CHAPTER 14.

An Act to amend the National Health Insurance Act, 1936, in relation to persons who are, or who since the first day of August nineteen hundred and thirty-five have been, employed in the manner mentioned in subsection (2) of section two of that Act; and to make consequential amendments in the Widows', Orphans' and Old Age Contributory Pensions Act, 1936.

A.D. 1938.

[30th March 1938.]

BE it enacted by the King's most Excellent Majesty, by ~~and~~ with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) The National Health Insurance Act, 1936, (hereinafter referred to as “the principal Act”) shall have effect as if in Part II of the First Schedule to that Act (which specifies the employments that are excepted employments for the purposes of that Act) there were inserted, after paragraph (g), the following paragraph :—

Amendment
of 26 Geo. 5.
& 1 Edw. 8.
c. 32, and
consequen-
tial amend-
ment of
26 Geo. 5. &
1 Edw. 8.
c. 33.

“(r) Employment for the purposes of any business of which, within a period of two years immediately preceding the date on which the employment began, the employed person was the owner or part owner, being employment of that person either by a relative or by a company in the case of which the majority of the voting power or shares is in the hands of the employed person or his relatives or of nominees of the employed person or his relatives.

A.D. 1938.
—

In this paragraph the expression 'relative' means the husband or wife, son or daughter or son-in-law or daughter-in-law of the employed person, or any of them, and the expression 'nominees' means persons who may be required to exercise their voting power on the directions of, or who hold shares directly or indirectly on behalf of, the employed person or any of his relatives."

(2) Subsection (2) of section two of the principal Act shall cease to have effect; and, for the purposes of that Act and of any Act repealed thereby, employment which was such as is specified in paragraph (r) of Part II of the First Schedule to the principal Act as amended by this section, shall, if and so far as it took place within the period beginning with the second day of August nineteen hundred and thirty-five and ending immediately before the commencement of this Act, be deemed not to have been employment within the meaning of the principal Act or of the Act repealed thereby, as the case may be.

(3) The powers conferred on the Minister of Health and on the Department of Health for Scotland by subsections (1) and (2) of section thirty-one of the Widows', Orphans' and Old Age Contributory Pensions Act, 1936, (hereinafter referred to as "the Pensions Act") shall, in relation to any person who, at any time during the period mentioned in subsection (2) of this section, was engaged in such employment as is mentioned in that subsection, include powers, respectively,—

- (a) to revise, on the assumption that the employment of that person as aforesaid in that period was not employment within the meaning of the principal Act or of any Act repealed thereby, any award or decision which, before the commencement of this Act, has been made or given with respect to that person by the said Minister or Department, as the case may be, under the Pensions Act or any Act repealed thereby, and
- (b) in a case in which a decision with respect to such a person has, before the commencement of this Act, been given by referees upon a reference to them under the Pensions Act or any Act repealed thereby, to direct that the

matter shall be referred to referees for A.D. 1938.
reconsideration on the said assumption; —

and subsections (3) and (4) of the said section thirty-one shall have effect accordingly.

(4) There shall be paid out of moneys provided by Parliament the sums necessary to defray such increase in any expenditure which by the principal Act or the Old Age Pensions Act, 1936, is directed to be defrayed out of moneys provided by Parliament as is attributable to the operation of this section. 26 Geo. 5. & 1 Edw. 8. c. 31.

2.—(1) This Act, so far as it amends the principal Act and relates to matters with respect to which the Parliament of Northern Ireland has power to make laws, shall not extend to Northern Ireland unless and until provision to that effect is made either— Application to Northern Ireland.

(a) by an Act of the Parliament of Northern Ireland, or

(b) by an Order of the Governor of Northern Ireland in Council made in pursuance of such an Act, and, if and when such provision is so made, shall apply to Northern Ireland subject to such exceptions and adaptations as may be specified in such Act or Order as aforesaid.

(2) For the purposes of section six of the Government of Ireland Act, 1920, this Act, so far as it amends the principal Act, shall be deemed to be an Act passed before the appointed day. 10 & 11 Geo. 5. c. 67.

(3) This Act, so far as it amends the Pensions Act, shall not extend to Northern Ireland.

3. This Act may be cited as the National Health Insurance (Amendment) Act, 1938, and the National Health Insurance Acts, 1936 and 1937, and this Act may be cited together as the National Health Insurance Acts, 1936 to 1938. Short title and citation.

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